

HOUSE No. 905

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act expanding pleasure boat access to Boston Harbor.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/10/2025</i>

HOUSE No. 905

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 905) of Tackey Chan for legislation to expand pleasure boat access to Boston Harbor. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 761 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act expanding pleasure boat access to Boston Harbor.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any General Law or Special Law to the contrary, all state and municipal
2 public agencies and authorities owning or controlling property within the City of Boston,
3 including but not limited to the City of Boston and the Massachusetts Port Authority, are hereby
4 authorized and directed to identify and cause the establishment of mooring and docking facilities
5 for pleasure boats within the City of Boston, with a particular emphasis on improving the
6 availability to the general public of multiple useful locations for mooring or docking on a short
7 term (hourly or daily) basis. Said agencies or authorities shall issue one or more public Requests
8 for Proposals to solicit provision to the general public of the necessary or appropriate capital
9 facilities and operations and maintenance services, with a particular emphasis on establishing
10 new mooring or docking facilities available to the general public for short term usage as well as

on a seasonal basis. According to their respective authorizing Acts or Charters, said public agencies or authorities may lease property, purchase property and/or enter into memoranda of agreement with private entities or other public agencies or authorities to improve public navigational access to Boston Harbor and the Harbor Islands for pleasure boating and to facilitate creation of boat landing, mooring or docking facilities available to the general public. Public agencies and authorities owning or controlling property within the City of Boston may charge or cause to be charged reasonable, market rate fees to defray the cost of creation and maintenance of any mooring or docking facility made available to the general public. Nothing in this section shall be construed to limit the provision of boating facilities to the general public by private or non-profit service providers. The City of Boston may expend funds from any account created under section 5G of chapter 40 of the General Laws for fulfilling this section. All state and municipal public agencies and authorities owning or controlling property in the City of Boston jointly or separately shall file a report with the Joint Committee on Natural Resources and Agriculture, the Commission of the Department of Conservation and Recreation, and the Public Access Board on or before January 1 of each year reporting on the locations for public tie up, mooring or docking within the City of Boston, including but not limited to the Inner Harbor of the Port of Boston and including but not limited to non-seasonal, transient, short term public facilities.